

**U.S. District Court
Southern District of New York (Foley Square)
CIVIL DOCKET FOR CASE #: 1:02-cv-05527-WHP**

James v. The City of New York, et al
Assigned to: Judge William H. Pauley, III
Demand: \$0
Cause: 42:1983 Prisoner Civil Rights

Date Filed: 07/17/2002
Date Terminated: 04/25/2003
Jury Demand: Plaintiff
Nature of Suit: 440 Civil Rights: Other
Jurisdiction: Federal Question

Plaintiff

Randy James

represented by **Daniel Matthew Perez**
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LEAD ATTORNEY

V.

Defendant

The City of New York

Defendant

Frank Ferrara
*New York City Police Sergeant, Shield No.
347*

Defendant

Roland Jerome
*New York City Police Detective, Shield No.
2356*

Defendant

Elson Winchester
*New York City Police Detective, Shield No.
2834*

Defendant

Patrick Smyth
*New York City Police Detective, Shield No.
5894*

Defendant

Michael Sammon
New York City Police Detective, Shield No.

7566

Defendant

James Meehan

*New York City Police Detective, Shield No.
6445*

Defendant

Patrick McMongle

*New York City Police Detective, Shield No.
3872*

Defendant

Edwin Stuart

New York City Police Detective

Defendant

Robert Henderson

*New York City Police Officer, Shield No.
29729*

Defendant

John Does 1-10

New York City Police Officers

Defendant

Jane Does 1-10

New York City Police Officers

Date Filed	#	Docket Text
07/17/2002	1	COMPLAINT filed. Summons issued and Notice pursuant to 28 U.S.C. 636(c). FILING FEE \$ 150.00 RECEIPT # 445264. (jol) (Entered: 07/19/2002)
07/17/2002		Magistrate Judge James C. Francis is so designated. (jol) (Entered: 07/19/2002)
07/25/2002	2	AFFIDAVIT OF SERVICE of summons and complaint as to The City of New York, Frank Ferrara, Roland Jerome, Patrick Smyth, Patrick McMongle, Robert Henderson, Elson Winchester by various means (see document) on 7/17/02. Answer due on 8/6/02 for The City of New York, for Frank Ferrara, for Roland Jerome, for Patrick Smyth, for Patrick McMongle, for Robert Henderson, for Elson Winchester. on July 25, 2002, alsomailed copy of same to above named defendants (djc) (Entered: 08/06/2002)
08/12/2002	3	Memo-Endorsement on letter addressed to Judge Pauley from Jonathan Houghton, dated 8/5/02; answer due to complaint for 9/27/02 for The City of New York. Application granted. In James v. City of New York, 02cv5527, defendant City of New York shall file & serve its answer or response to the complaint by 9/27/02 . (signed by Judge William H. Pauley III); Copies mailed. (jco) Modified on 08/15/2002 (Entered: 08/14/2002)
08/28/2002	4	RETURN OF SERVICE of Summons and Complaint executed as to Edwin Stuart by Det. Flores on 8/21/02 . Answer due on 9/10/02 for Edwin Stuart . (sb) (Entered: 09/04/2002)
09/11/2002	5	ORDER FOR INITIAL PRETRIAL CONFERENCE; counsel are directed to appear in Courtroom 11D at the U.S. Courthouse, 500 Pearl Street, on 10/4/02 at 9:30 a.m. for an

		initial pretrial conference with the Court for the purpose of discussing settlement, exploring contemplated motions, stipulating facts, narrowing issues, arranging a discovery schedule, and setting a date for trial. (signed by Judge William H. Pauley III) (sb) (Entered: 09/12/2002)
10/04/2002		PRETRIAL CONFERENCE held before Judge William H. Pauley III (dj) (Entered: 10/24/2002)
10/09/2002	6	SCHEDULING ORDER: that all fact discovery cutoff 3/31/03; a joint pretrial order to be submitted on or before 6/13/03 ; a final pretrial conference for 10:00 6/20/03; additional discovery deadlines are as set forth in this Scheduling Order. (signed by Judge William H. Pauley III); (pl) (Entered: 10/10/2002)
10/24/2002	7	Memorandum to Docket Clerk: Pretrial conference held and concluded on 10/04/02; (dj) (Entered: 10/24/2002)
11/07/2002	8	CERTIFICATE OF SERVICE of Demands to Produce Interrogatories as to defendants by Beth Hoffman c/o Office of the Corporation Counsel, City of New York, Law Department on 10/25/02. (tp) (Entered: 11/13/2002)
02/24/2003	9	AMENDED SCHEDULING ORDER: all fact discovery shall be completed by 4/30/03; all expert discovery shall be completed by 6/16/03. (See document for further related discovery schedule). The parties shall submit a joint pretrial order by 7/14/03; final pretrial conference will be held on 7/18/03 at 10:00 a.m. (signed by Judge William H. Pauley III); Copies mailed by chambers. (kw) (Entered: 02/26/2003)
04/25/2003	10	STIPULATION and ORDER of SETTLEMENT AND DISCONTINUANCE, that this action is hereby dismissed, with prejudice, and without costs, expenses, or fees in excess of the amount of \$125,000.00 ; Defendant City of NY hereby agrees to pay plaintiff the sum of \$125,000.00 in full satisfaction of all claims, including claims for costs, expenses and attorney fees . (signed by Judge William H. Pauley III) (tp) (Entered: 04/28/2003)
04/25/2003		Case closed. (tp) (Entered: 04/28/2003)

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